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Governor signs legislation to address homelessness

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SACRAMENTO — California Governor Gavin Newsom signed Tuesday two bills into law — AB 2835 (Gabriel) and AB 3057 (Wilson) — today to help create more shelter beds for Californians and build more housing units faster.

"The homelessness crisis demands immediate and innovative action, not the status quo," Calif. Gov. Newsom said in a press release. "With these new laws, local governments have even more tools to provide housing. I urge them to fully utilize the state's unprecedented resources to address homelessness."

AB 2835, authored by Assemblymember Jesse Gabriel, removes the sunset date on tenancy rules that make it easier for service providers to place people experiencing homelessness into privately owned hotels and motels for more than 30 days. This approach has been proven to enhance stability for those in need.

AB 3057, authored by Assemblymember Lori Wilson, will help streamline and jumpstart the process for local governments to permit and facilitate the construction of Junior Accessory Dwelling Units to create more affordable living spaces throughout the state.

Local governments and service providers throughout the state have successfully used hotels and motels to provide housing for homeless individuals. These efforts have been enhanced through Governor Newsom's pioneering and nation-leading housing programs, the governor's office said.

Since 2019, the state has invested over $27 billion to support local governments in providing services and housing to help prevent and end homelessness, including $3.3 billion for Homekey, $1 billion in Encampment Resolution Funding, and $4.85 billion in Homelessness Housing Assistance Program funds. The state encourages local governments to use this funding to ramp up efforts to support people experiencing homelessness and help get people out of dangerous encampments.

In 2023, roughly 181,000 Californians experienced homelessness, with approximately 90,000 people in unsheltered conditions.

The Governor's Office said unprecedented investments and support, many local communities have worked towards solving unsheltered homelessness by using available space in hotels and motels to supplement available shelter beds. This strategy not only creates additional safe and stable interim shelter for Californians experiencing homelessness but also helps ensure that service providers can more easily connect and support people with the services they need to access housing and exit homelessness permanently. AB 2835 extends local governments' and service providers' ability to use this tool indefinitely.

"We need solutions to our homelessness crisis that are both compassionate and effective," Assemblymember Gabriel said. "AB 2835 will deliver on both fronts by providing much-needed stability to kids and families experiencing homelessness while also cutting red tape and saving taxpayer resources. I am proud to partner with Governor Newsom on this effort and appreciate his continued leadership."

Although there are many reasons why someone may lose access to housing, the lack of available affordable homes in California is a key driver. Most people who enter homelessness are rent-burdened and cite economic hardship such as increased rent or housing costs. Adding to the inventory of available housing is an essential part of the state's strategy to address this challenge. Accessory Dwelling Units (ADUs) and Junior Accessory Dwelling Units (JADUs) are innovative and effective options for adding much-needed housing in California.

California has helped create new housing by expanding and streamlining the process of creating ADUs and holding local governments who unlawfully block housing production accountable. Today's bills expand this support by extending to JADUs the current exemptions from the California Environmental Quality Act (CEQA) that apply to local laws that allow the creation of standard ADUs.

"AB 3057 represents a small but significant technical change that offers Californians more accessible and efficient options to build affordable housing solutions," Assemblywoman Wilson noted. "By simplifying the process for constructing junior accessory dwelling units (JADUs), this bill makes it faster, cheaper, and easier for families to create additional living spaces within their homes, helping to address our state's housing shortage. This legislation allows families to stay closer together and fosters stronger, more connected communities. I am grateful to Governor Newsom for signing this bill and to California YIMBY for their unwavering commitment to making California an affordable place for everyone."

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